

24STCV15196 24STCV15196

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-06-23

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Case Number: 24STCV15196 Hearing Date: June 23, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 23, 2026

Case Name: Immigrant Rights Defense Council, LLC v. Young, et al.

Case No.: 24STCV15196

Matter: Motion to Tax Costs

Moving Party: Defendants Linda Young and Young & Young Int'l Consultant Group

Responding Party: Plaintiff Immigrant Rights Defense Council, LLC

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

In 24STCV15196, the Court of Appeal recently reversed the trial court's (Hon. Maureen Duffy-Lewis) granting of Defendants' anti-SLAPP motion.

On January 29, 2026, Plaintiff filed a memorandum of costs after judgment.

On May 21, 2026, the Court ruled: "Plaintiff shall file an acknowledgement of partial satisfaction of judgment in the amount of \$3,395.73 within 15 days. The abstract of judgment shall remain because Defendants still owe \$3,000 in fees and sanctions. Additionally, Defendants still owe \$412.10 from the January 29, 2026, memorandum of costs."

Defendants now seek to strike/tax Plaintiff's subsequent memorandum of costs (filed May 5, 2026), arguing that their tender of a check abrogated all other liability and Defendants owe nothing further to Plaintiff.

Plaintiff is seeking its costs for opposing an ex parte application by Defendants, who did not want to pay the approximate \$400 outstanding balance. Plaintiff filed a memorandum of costs in the amount of \$2,643.66.

Defendants' arguments mostly lack merit. There was a remaining liability as to costs, and Plaintiff is entitled to seek its costs with respect to the ex parte application. The ex parte was an explicit attempt to stay enforcement of the judgment. Under CCP § 685.040, a judgment creditor is entitled to attorney's fees incurred in enforcing a judgment if the underlying contract or statute allows it. The Court would only reduce the fees requested on the memorandum from \$2,250 (2.8 hours at \$850 per hour, with a voluntary deduction of \$130) to \$1,550 (2.8 hours at \$600 per hour, minus \$130).

The Motion is granted in part—there will only be a reduction of \$700.

Moving party to give notice.